

# The Superior Court of the State of Delaware

## Petition for Expungement of Adult Record

|                                                                                          |                                      |
|------------------------------------------------------------------------------------------|--------------------------------------|
| Petitioner<br><b>Danielle Rose Hargrove</b>                                              |                                      |
| Street Address (including Apt)<br><b>88 Loockerman Street</b>                            |                                      |
| P.O. Box Number                                                                          |                                      |
| City/State/Zip Code<br><b>Dover, DE 19901</b>                                            |                                      |
| Date of Birth<br><b>1992-07-22</b>                                                       | Telephone #<br><b>(302) 555-0163</b> |
| Attorney Name (if any)                                                                   |                                      |
| Interpreter needed? <input type="checkbox"/> Yes <input type="checkbox"/> No<br>Language |                                      |

|                                                                                                   |
|---------------------------------------------------------------------------------------------------|
| <b>ATTORNEY GENERAL</b>                                                                           |
| <input type="checkbox"/> <b>New Castle County</b><br>820 N. French Street<br>Wilmington, DE 19801 |
| <input type="checkbox"/> <b>Kent County</b><br>102 W. Water Street<br>Dover, DE 19904             |
| <input type="checkbox"/> <b>Sussex County</b><br>114 East Market Street<br>Georgetown, DE 19947   |

|                                      |
|--------------------------------------|
| Crim. Case No.<br><b>K21-03-0455</b> |
| Civil Petition No.                   |

Pursuant to 11 *Del. C.* § 4374, Danielle Rose Hargrove (Petitioner), hereby petitions Superior Court for expungement of the following case(s), and the charge or set of charges related to that case(s), from his or her criminal record. Each charge is listed separately below; any additional charges are listed on Superior Court Form: [CIV EXP 02 B](#).

| Case ID # or Criminal Case # | Charge | Offense Date | Disposition Date | Disposition |
|------------------------------|--------|--------------|------------------|-------------|
|                              |        |              |                  |             |
|                              |        |              |                  |             |
|                              |        |              |                  |             |
|                              |        |              |                  |             |

The following information **MUST** be completed for the Court to consider the petition

☐ The continued existence and possible dissemination of criminal records relating to Petitioner causes, or may cause, circumstances which constitute a manifest injustice to the Petitioner.

**You must explain how** the Petitioner is negatively affected by the continued existence and possible dissemination of the criminal records (attach additional pages if necessary):

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Petitioner requests that this Court enter an Order directing:

- That all law-enforcement agency records and court records relating to the above referenced case(s), and the charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
- That copies of this Court's Order be delivered to the Petitioner, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
- That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to the public inspection or disclosure.
- That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged, or convicted in the above reference case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).

The Petitioner hereby declares that the above information is true and correct to the best of his or her ability.

\_\_\_\_\_  
Petitioner's Signature

Sworn to and subscribed before me this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_

\_\_\_\_\_  
Clerk of Court/Notary Public

\_\_\_\_\_  
Date

# IN THE SUPERIOR COURT OF THE STATE OF DELAWARE

|                                                                              |                                                                                            |                                                                                                             |
|------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
| Petitioner<br><b>Danielle Rose Hargrove</b>                                  | Department of Justice                                                                      | Civil Action No. _____<br>(Leave Blank – Court will assign)<br><br><b>EXPUNGEMENT<br/>ORDER<br/>GRANTED</b> |
| Street Address (including Apt.)<br><b>88 Loockerman Street</b>               | <input type="checkbox"/> New Castle County<br>820 N. French Street<br>Wilmington, DE 19801 |                                                                                                             |
| P.O. Box Number                                                              | <input type="checkbox"/> Kent County<br>102 W. Water Street<br>Dover, DE 19904             |                                                                                                             |
| City/State/Zip Code<br><b>Dover, DE 19901</b>                                | <input type="checkbox"/> Sussex County<br>114 East Market Street<br>Georgetown, DE 19947   |                                                                                                             |
| Date of Birth<br><b>1992-07-22</b>                                           |                                                                                            |                                                                                                             |
| Telephone Number<br><b>(302) 555-0163</b>                                    |                                                                                            |                                                                                                             |
| Attorney Name (if any)                                                       |                                                                                            |                                                                                                             |
| Interpreter Needed? <input type="checkbox"/> Yes <input type="checkbox"/> No |                                                                                            |                                                                                                             |
| Language:                                                                    |                                                                                            |                                                                                                             |

WHEREAS, the Petitioner filed a Petition seeking to have all law-enforcement agency records and court records related to the below case(s), and charge or set of charges related to that case(s), expunged pursuant to 11 *Del. C.* § 4374;

| Case ID# or Criminal Case # | Charge | Offense Date | Disposition and Disposition Date | Court |
|-----------------------------|--------|--------------|----------------------------------|-------|
|                             |        |              |                                  |       |
|                             |        |              |                                  |       |
|                             |        |              |                                  |       |
|                             |        |              |                                  |       |

WHEREAS, it appears that the Attorney General was served with the Petition and provided its response to the Petition to the Court; and

WHEREAS, the Court having considered the Petition and the Attorney General’s response thereto, finds that the continued existence and possible dissemination of information relating to the referenced case(s), and the charge or set of charges related to that case(s), cause Petitioner or may cause Petitioner circumstances, which constitute manifest injustice to the Petitioner.

**NOW THEREFORE, IT IS ORDERED** that the Petition be **GRANTED**.

**IT IS FURTHER ORDERED,**

1. That all law-enforcement agency records and court records relating to the above referenced case(s), and charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
2. That copies of this Court’s Order be delivered to the Petitioner or Petitioner’s Attorney, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
3. That the Department of Justice and the courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to public inspection or disclosure.
4. That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged or convicted in the above referenced case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).
5. Other: \_\_\_\_\_

\_\_\_\_\_  
DATE

\_\_\_\_\_  
JUDICIAL OFFICER’S SIGNATURE